

Here, Plaintiff's concern is with the statements of compliance provided by Defendant, not with the documents produced. See Reply, p. 2. The RFPs all have substantially similar responses. They state "Responding Party will produce all responsive, non-privileged documents in its possession, custody, and control." See Joint Separate Statement, p. 5 *et seq.* The response to RFP No. 1 includes a qualifying statement that the responding party cannot determine with certainty which records relate to the purchase of the subject battery. Joint Separate Statement, p. 5. Nonetheless, it goes on to state similar language to the other RFPs. *Id.* The parties further agree that the responses are verified. See Opposition, p. 4; Reply, p. 2. As such, the Court finds that all responses comply with the requirements provided by Code of Civil Procedure section 2031.210 *et seq.*

The Motion to Compel is **DENIED** as to RFPs Nos. 1, 5, 6, 10, and 11.

Sanctions

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Compel is **GRANTED IN PART** as to Special Interrogatory No. 11. Defendant shall serve a **verified** further amended response to the subject SROG **within thirty (30) calendar days** of notice of entry of this order.
2. The Motion to Compel is **DENIED IN PART** as to Requests for Production Nos. 1, 5, 6, 10, and 11.
3. Any and all sanctions requests are DENIED. However, the Court reserves jurisdiction regarding the consideration and imposition of any and all further sanctions as the Court may deem just and necessary pending compliance with this order.
4. The Court shall prepare the order after hearing.

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING IN RE: MOT. FOR RECONSIDERATION ON SANCTIONS
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi ("Plaintiff") filed its Motion for Reconsideration of Monetary Sanctions on May 15, 2026 (the "Motion for Reconsideration"). The Motion for Reconsideration was initially set for hearing on July 20, 2026. Thereafter, the motion was continued to August 3, 2026. See Order entered June 10, 2026.

Background

Plaintiff contends that the Court should reconsider the monetary sanctions imposed on Plaintiff by the Court in connection with prior unsuccessful motions to compel brought by Plaintiff. See Order entered May 5, 2026 (\$3,065.00 in monetary sanctions imposed by order denying motion to compel further responses to Requests for Production of Documents (Set Three) heard May 4, 2026); see also Orders entered March 3, 2026 and May 15, 2026 (\$1,000.00 in monetary sanctions imposed by orders denying motion to compel further responses to form interrogatories and various requests for production of documents). These sanctions total \$4,065.00.

The motions were denied on procedural grounds due to Plaintiff's failure to timely file proper Separate Statements in support of the motions. In its later ruling, the Court also noted that "the moving party's meet and confer efforts were woefully inadequate." See Order entered May 5, 2026, Attachment A, p. 2.

An Opposition, including the Declaration of Kevin D. Siegel ("Siegel Decl.") was filed on July 21, 2026.

Analysis

Code of Civil Procedure section 1008 governs a motion for reconsideration. The statute provides "[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." Code Civ. Proc. § 1008 (emphasis added). The different state of facts language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier. *Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.

Plaintiff also seeks relief under Code of Civil Procedure section 473(b). Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 ("*Rivercourt*"). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Plaintiff's motion recites that the sanctions were paid. However, he goes on to make certain observations about new information supposedly learned regarding the other party's discovery compliance.

As noted in the Opposition papers, Plaintiff persists in blatant violation of relevant procedural requirements. His twenty-five (25) page Memorandum of Points and Authorities violates Rule 3.1113* of the California Rules of Court (CRC). See CRC 3.1113(d) ("Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages.").

Also, the effect of this motion is, essentially, to ask the Court to delve into detailed issues with discovery requests and responses without the benefit of a proper detailed Separate Statement, compounding the prior procedural errors. The Court declines to do so.

In any event, the “new” issues raised by Plaintiff do not go to the crux of the bases for the Court’s prior rulings underlying the monetary sanctions (or to the determination of the sanctions amounts themselves).

Plaintiff has also failed to show the existence of any mistake, inadvertence, surprise, or excusable neglect on the part of Plaintiff that would warrant the relief sought. Even if somehow tantamount to mistake, inadvertence, surprise, or excusable neglect on Plaintiff’s part, his belated receipt or review of the other party’s opposition papers did not result in the adverse rulings and monetary sanctions against him. Rather, his persistent failure to comply with procedural requirements did.

*The opposing party’s citation to “Rule 3.113” is erroneous.

Disposition

The Court finds and orders as follows:

1. The Motion for Reconsideration is DENIED.
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C25-03449
CASE NAME: JOHN M.O. ROE VS. OFFICER LEWIS
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA
TENTATIVE RULING:

Defendant County of Contra Costa (“Defendant”) brings this demurrer to the first amended complaint (“Complaint”) of plaintiff John M.O. Roe (“Plaintiff”). Defendant argues that: (1) the entire Complaint fails due to Government Code section 844.6; (2) the first cause of action for violation of the Bane Act (Civil Code section 52.1) fails to state facts sufficient to constitute a cause of action; (3) the second cause of action for sexual harassment (Civil Code section 51.9) fails to state facts sufficient to constitute a cause of action; (4) the third cause of action for failure to summon medical care fails to state facts sufficient to constitute a cause of action; (5) the fourth cause of action for negligence fails to state facts sufficient to constitute a cause of action; (6) the fifth cause of action for negligent supervision fails to state facts sufficient to constitute a cause of action; (7) the sixth cause of action for negligent hiring and retention fails to state facts sufficient to constitute a cause of action; and (8) the seventh cause of action for negligent failure to warn, train, or educate fails to state facts sufficient to constitute a cause of action.

For the reasons discussed below, the Court **SUSTAINS** Defendant’s demurrer to Plaintiff’s Complaint, in full, with leave to amend. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Lauren B. Fazio Decl., ¶¶ 2-4; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)